

Amendment No. 1 to HB1949

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2179

House Bill No. 1949*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 33-11-105, is amended by adding the following as new subsections (b) and (c) and redesignating the existing subsection (b) as subsection (d):

(b) Except as provided in subsection (c), the council may approve an advance payment of disbursed funds awarded as a grant contract to a nonprofit organization for statewide, regional, or local opioid abatement and remediation purposes. For purposes of this section only, an "advance payment" means a one-time request by a nonprofit organization made within the first three (3) months following the date of execution of a grant contract for an amount not to exceed four (4) months of the projected employee salaries, benefits, and taxes of the nonprofit organization.

(c)

(1) An advance payment must not be disbursed or otherwise provided directly or indirectly to an organization that has not been awarded the grant contract by the council.

(2) In order to be eligible to receive an advance payment, the nonprofit organizations shall provide the council with written documentation demonstrating that the nonprofit organization is recognized by the internal revenue service as a tax-exempt nonprofit entity under § 501(c)(3) of the Internal Revenue Code (26 U.S.C. § 501(c)(3)) and has an annual operating budget of no more than five hundred thousand dollars (\$500,000).

(3) The nonprofit organization requesting an advance payment shall submit written documentation as requested by the council demonstrating the justification for the advance payment. Advance payments are subject to the terms and conditions as prescribed by the council and in accordance with state law.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.